

From: [Brendan Aggeler](#)
To: [ostp-ai-rfi](#)
Subject: [External] AI Action Plan (Belated)
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To whom it may concern, and with apologies for it only being brought to my attention a few hours past the deadline. I hope you will still hear me regardless.

From:
B. A.
Graduate, attempting reely
[YOUR ADDRESS OR AT LEAST CITY, STATE]

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American, with a number of artist friends and a hope to break into the commissioned art market myself (albeit as a side business). The artist friends and acquaintances who make a living with their art have worked for years to develop their skills and cultivate a client base, to the point of being able to sustain themselves under

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like those of my friends with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, my more talented friends' work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to artists' clients – directly competing with us and cutting us out of the marketplace. That's troublesome enough for an established artist or even a large company, and even worse for someone hoping to enter the market.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking; this is the attitude of an entitled manchild who has been told they can't use someone else's art that they found on a Google search without permission. The attitude of a lazy college student being told they have to write their own essay from scratch instead of taking a prefabricated one from the internet. They claim, as all lazy businessmen protesting regulation do, that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things? The tech companies themselves will likewise lose any motivation to innovate, as corporations have a pattern of taking the path of least resistance wherever possible; this copyright exemption will render them directionless and incentivize them to let other people do the real work while they simply regurgitate it, and their output will stagnate as a result. This is especially true when you consider that with this exemption, there will be nothing to stop tech companies from plagiarizing *each other's* code - it is liable to create a world of degraded copies of degraded copies of degraded copies. America is already being left in the dust technologically and artistically by countries who can *actually* innovate, and this will bring us to a standstill. It will be even worse if major creative industry players leave the country for greener pastures where their copyrights will be respected.

History has shown that when it comes to corporations, it is **restriction and competition** that breeds innovation - not exemptions. Look at the case of automotive engines, for example. Prior to the environmental regulations of the seventies, American automotive engines were by and large crude slabs that could have almost have been hammered out by cavemen because American car companies had gotten to the point of "good enough" years ago and given up on further refinement; it was only when the need to meet emissions regulations - and competition from foreign cars that already did - forced their hands that they began innovating again. Companies without restriction and competition have no goal to aim for, no bar to clear; they become listless, demotivated, directionless slugs, easily trod on by outside competition.

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech. This has the potential to turn AI from a threat and nuisance it presently is to a genuine asset, especially if AI companies have to

compete to be first to license copyrighted work; that could create a new gold rush!

- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated. This will allow protection of artists' work as well as sensitive information, and make it easier to identify shortcomings that bias datasets as well as whether foreign interference (or corrupt management) is tampering with the output to make it more favorable to them.

I am not anti-technology or even entirely anti-AI. I am impressed by the capabilities of these AI systems when they are not being put to ill use, and I can see areas where they would be incredibly, genuinely useful. But we should not sacrifice the hard work of hundreds of thousands - if not millions - of Americans and give it away to Big Tech by rewriting copyright law. Who's going to be able to buy or subscribe to their products if all everyday Americans' wallets have in them are moths? And the capabilities of these AI systems will dramatically slow down their growth if this exemption is given - they will rapidly plateau and perhaps even regress, as the incentive to innovate will disappear.

I would also like to address the claim that this copyright exemption is necessary for "national security." This is, at best, an admission that OpenAI et al that they are too inept to compete against foreign AI models without taking lazy shortcuts that they aren't even willing to pay royalties for (in which case they are hardly worth the government's time in the first place). At worst, it is a complete fabrication designed to scam the American government by pushing a perceived easy button. Either way, it conveniently ignores that unchecked AI training actually poses national security risks. For one thing, it encourages a lazy, unfiltered approach to data gathering that will make these AI models susceptible to their training being sabotaged with floods of garbage input - amusing now, disastrous if they were to see governmental use. For another, the insistence on gathering any and all data they can get their hands on is very likely to lead to misappropriation and even leaking of classified information - especially with Microsoft now trying to use MS Office to scrape people's documents. Even someone like Mr. Musk appears to recognize this threat, considering he expressed concern over OpenAI being integrated into MacOS. And heaven forbid one of these companies should have a data breach. This is made all the worse by the lack of oversight implicit in the exemption. Another major issue is that this exemption would weaken these AI companies' ability to defend their own code from foreign parties (and each other, as stated above); OpenAI is currently challenging Deepseek on copyright grounds, but if it is decreed that AI companies have free rein to pilfer copyrighted work then they will have precious little leg to stand on.

Thank you for the opportunity to comment on these important issues, although I did not become aware of it until after the deadline.

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